



Dyana Limon-Mercado

Dyana Limon-Mercado, County Clerk
Travis County, Texas

Oct 31, 2024 02:25 PM Fee: \$ 161.00

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STATE OF TEXAS §
COUNTY OF TRAVIS §

AMENDED AND RESTATED RULES AND REGULATIONS
OF
SCOFIELD RESIDENTIAL OWNERS ASSOCIATION, INC.

Document reference. Reference is hereby made to that certain Scofield Residential Area Declaration of Covenants, Conditions and Restrictions, filed at Vol. 11863, Pg. 1147, of the Real Property Records of Travis County, Texas (together with all amendments and supplements, the "Declaration").

Reference is further made to those certain Bylaws of Scofield Residential Owners Association, Inc., filed as Document No. 2007073244 in the Official Public Records of Travis County, Texas (together with all amendments and supplements, the "Bylaws").

Reference is further made to that certain Amended and Restated Rules and Regulations of Scofield Residential Owners Association, Inc., filed as Document No. 2013155826, and to that certain Administrative Policy of Scofield Residential Owners Association, Inc. filed as Document No. 2013144264, and to the Amendments to the Amended and Restated Rules and Regulations filed as Document Nos. 2016035458, 2017064533, 2021222039, and 2024084947, all in the Official Public Records of Travis County, Texas (cumulatively and together with any amendments and supplements, the "Prior Rules").

WHEREAS the Declaration provides that persons owning lots subject to the Declaration are automatically made members of Scofield Residential Owners Association, Inc. (the "Association");

WHEREAS the Association, acting through its board of directors (the "Board"), is authorized to adopt and amend rules covering any and all aspects of its functions, including the use and occupancy of the Association Property and the Common Area pursuant to Declaration §5.4 (e) and State law;

WHEREAS the Board further has the powers and duties necessary for the administration of the affairs of the Association and for the operation and maintenance of the Property in the manner required by the Declaration, together with all powers and duties incidental thereto pursuant to Section 6.2 of the Bylaws; and

WHEREAS the Board previously adopted the Prior Rules and has voted to amend and restate the Prior Rules as provided in Exhibit "A" hereto;

THEREFORE the Amended and Restated Rules attached as Exhibit "A" have been, and by these presents are, ADOPTED and APPROVED, and do REPLACE and SUPERCEDE the Prior Rules.

SCOFIELD RESIDENTIAL OWNERS ASSOCIATION, INC.

Acting by and through its Board of Directors

Signature: Joseph B. Borgo
Printed Name: JOSEPH B. BORGO
Title: PRESIDENT
Date: OCTOBER 14, 2024

Exhibit "A": Amended and Restated Rules

Acknowledgements

STATE OF TEXAS §

COUNTY OF TRAVIS §

This instrument was executed before me on the 14th day of October, 2024, by Joseph Borgo (President) in the capacity stated above.

[Signature]
Notary Public, State of Texas

After recording, please return to:

Nieman & Heyer, L.L.P.
Attorneys At Law
Westgate Building, Suite 313
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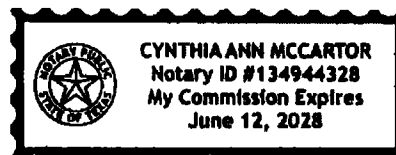


EXHIBIT "A"

**AMENDED AND RESTATED RULES AND REGULATIONS
OF
SCOFIELD RESIDENTIAL OWNERS ASSOCIATION, INC.**

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SECTION I. FLAGS

1. General. An Owner may display flags only on his or her Lot and only in compliance with this Section. An Owner may not display flags on the Common Areas, or on any other lands owned or maintained by the Association, for any reason or at any time. An Owner may have one flagpole, or one residence-mounted flag mount, but not both.
2. Prior Approval Required. All flagpoles, flag mounts, and related installations (e.g., flag lighting) must be approved in advance by the Association's Architectural Committee (ACC). An Owner desiring to display a permitted flag must submit plans to the ACC for each installation, detailing the dimensions, type, location, materials, and style/appearance of the flagpole, flag mount(s), lighting and related installations. The Association's ACC shall have the sole discretion of determining whether such items and installations comply with this Section I, subject to any appeal rights that may exist elsewhere in the Association's governing documents or under State law.
3. Permitted Flags. An Owner is permitted to display on his or her Lot the flag of the United States of America, the flag of the State of Texas, and/or an official replica of any branch of the United States armed forces, subject to the restrictions contained in this Section I.

Display of all other flags is prohibited. A pennant, banner, plaque, sign or other item that contains a rendition of a permitted flag does not qualify as a permitted flag under this Section I.

4. **Additional Requirements Related to Flags.**
 - a. Flags must be displayed on an approved flag mount or flagpole. Flags may not be displayed in any other manner.
 - b. The U.S. and Texas flags must be hoisted, flown, and lowered in a respectful manner.
 - c. The U.S. and Texas flags must never be flown upside down and must never touch the ground.
 - d. No mark, sign, insignia, design, or advertising of any kind may be added to a flag.
 - e. If both the U.S. and Texas flags are displayed, they must be of approximately equal size.
 - f. If the U.S. and Texas flags are flown on one pole, the U.S. flag must be the highest flag flown and the Texas flag the second highest.
 - g. Only all-weather flags may be displayed during inclement weather.
 - h. Flags must be no larger than 3'x5' in size.
5. **Materials and Appearance of Flag Mounts and Flagpoles.** A flag mount attached to a dwelling or a freestanding flagpole must be constructed of permanent, long-lasting materials, with a finish appropriate to the materials (per the discretion of the ACC) used in the construction of the mount or flagpole and harmonious with the dwelling.
6. **Additional Requirements for Flagpoles.** The following additional requirements shall apply to flagpoles installed on Lots:
 - a. No more than one flagpole may be installed on a Lot;
 - b. The flagpole must be free-standing and installed vertically;
 - c. The flagpole must be no greater than 20 feet in height measured from grade level;
 - d. The location and construction of the flagpole must comply with applicable zoning ordinances, may not be located in any easements (including drainage easements), and must comply with all setback requirements;
 - e. Unless otherwise approved by the ACC, the location of the pole must be within 10 feet of one of the side-most building lines of the home, and within 10 feet of the front most building line of the home. The ACC may require the pole to be installed on a particular side; and
 - f. No trees may be removed for pole installation.
7. **Lighting of Flag Displays.** Any lights installed for the purpose of illuminating a flag must be pre-approved by the Association. Such light installations must be of a reasonable size and intensity and placed in a reasonable location, for the purpose of ensuring that the lights do not unreasonably disturb or distract other individuals. All flag illumination lighting must be specifically dedicated to that purpose. No other lighting, whether located inside or outside of the residence, may be directed toward a displayed flag for purposes of illuminating the flag (e.g., security flood or spot lights may not be oriented toward a displayed flag).
8. **Maintenance.** An Owner is responsible for ensuring that a displayed flag, flagpole, flag mount(s), lighting and related installations are maintained in good and attractive condition at all times at the Owner's expense. Any flag, flagpole, flag mount, light, or related installation or item that is in a deteriorated or unsafe condition must be repaired, replaced, or removed promptly upon the discovery of its condition.
9. **Noise Restrictions.** An Owner must ensure that external halyards (hoisting ropes) used in combination with the flagpole do not create an unreasonable amount of noise.

SECTION II. SOLAR ENERGY DEVICES

1. **Conflict with Other Provisions.** Per state law, this Section II controls over any provision in any other Association governing document to the contrary, including Declaration Section 3.9, to the extent of any conflict.
2. **Prior Approval Required.** An Owner may install solar energy devices only on property solely owned and solely maintained by the Owner, and only in accordance with the restrictions provided herein. Owners may not install solar energy devices except in accordance with the restrictions provided herein. Prior to installation of any solar energy device, the Owner must submit plans for the device and all appurtenances thereto to the ACC. The plans must provide an as-built rendering, and detail the location, size, materials, and color of all solar devices, and provide calculations of the estimated energy production of the proposed devices.
3. **Definition.** In this section, "solar energy device" means a system or series of mechanisms designed primarily to provide heating or cooling or to produce electrical or mechanical power by collecting and transferring solar-generated energy. All solar devices not meeting this definition are prohibited.
4. **Prohibited Devices.** Owners may not install solar energy devices that:
 - a. threaten the public health or safety;
 - b. violate a law;
 - c. are located on property owned by the Association;
 - d. are located in an area owned in common by the members of the Association;
 - e. are located in an area on the property Owner's property other than:
 - i. on the roof of the home (or of another structure on the Owner's lot allowed under the Association's governing documents); or
 - ii. in a fenced yard or patio owned and maintained by the Owner;
 - f. are installed in a manner that voids material warranties;
 - g. are installed without prior approval by the ACC; or
 - h. substantially interfere with the use and enjoyment of land by causing unreasonable discomfort or annoyance to persons of ordinary sensibilities. *This determination may be made at any time, and the ACC may require removal of any device in violation of this or any other requirement.*
5. **Limitations on Roof-Mounted Devices.** If the device is mounted on the roof of the home, it must:
 - a. extend no higher than or beyond the roofline;
 - b. be located only on the back of the home – the side of the roof opposite the street. The ACC may grant a variance in accordance with state law if the alternate location is substantially more efficient¹;
 - c. conform to the slope of the roof, and have all top edges parallel to the roofline; and
 - d. not have a frame, a support bracket, or visible piping or wiring that is any color other than silver, bronze, or black tone commonly available in the marketplace.
6. **Limitations on Devices in a Fenced Yard or Patio.** If the device is located in a fenced yard or patio, it may not be taller than the fence line.
7. **Solar Shingles.** Any solar shingles must:
 - a. Be designed primarily to:
 - i. be wind and hail resistant;

¹ If an alternate location increases the estimated annual energy production of the device more than 10 percent above the energy production of the device if located on the back of the home, the Association will authorize an alternate location in accordance with these Rules and state law. It is the Owner's responsibility to determine and provide sufficient evidence to the ACC of all energy production calculations. All calculations must be performed by an industry professional.

- ii. provide heating/cooling efficiencies greater than those provided by customary composite shingles; or
- iii. provide solar generation capabilities; and
- b. When installed:
 - i. resemble the shingles used or otherwise authorized for use on property in the subdivision;
 - ii. are more durable than and are of equal or superior quality to the shingles used or otherwise authorized for use on property in the subdivision; and
 - iii. match the aesthetics of the property surrounding the Owner's property.

SECTION III. CAMERAS

1. **Video Surveillance.** Various cameras have been or may be installed at the Board's discretion at various places throughout the common area. These cameras may be unmonitored and/or non-functional at any time. No surveillance system should be relied upon to ensure a resident's personal safety – personal safety is the responsibility of the individual and law enforcement. The Association cannot and does not warrant the effectiveness or mechanical repair of any cameras. Any camera may be a 'dummy' camera.

The board will determine in its sole discretion how long any surveillance recordings are retained. The Association has no duty to retain any surveillance recordings. The Association will allow law enforcement access to surveillance recordings upon request of an authorized governmental law enforcement authority, but the board may in its discretion first require a subpoena to be issued. The Association will allow Owner access to surveillance recordings only if a police report has been filed for the incident in question and a copy of the report is provided to the Association. If costs are incurred by the Association in providing an Owner access to the surveillance recordings, the Association may hold the Owner responsible for such costs.

SECTION IV. RAIN BARRELS AND RAINWATER HARVESTING SYSTEMS

1. **Pre Approval Required.** Owners may install rain barrels or rainwater harvesting systems only with pre-approval from the Association, and only in accordance with the restrictions described in this Section IV.
2. **Prohibited Locations.** Owners are prohibited from installing rain barrels or rainwater harvesting systems, or any part thereof, in the following locations:
 - a. on property owned by the Association;
 - b. on property owned in common by the members of the Association; or
 - c. on property between the front of the Owner's home and an adjoining or adjacent street.
3. **Pre-Approval Required for All Rain Barrels or Rainwater Harvesting Systems.** Prior to any installation of any rain barrel or rain harvesting system (or any part thereof), prior written permission must be received from the ACC.

Owners wishing to install such systems must submit plans showing the proposed location, color(s), material(s), shielding, dimensions of the proposed improvements, and whether any part of the proposed improvements will be visible from the street, another lot, or a common area (and if so, what part(s) will be visible). The location information must provide information as to how far (in feet and inches) the improvement(s) will be from the side, front, and back property line of the Owner's property.

4. **Color and Other Appearance Restrictions.** Owners are prohibited from installing rain barrels or rainwater harvesting systems that:
 - a. are of a color other than a color consistent with the color scheme of the Owner's home;
 - b. display any language or other content that is not typically displayed by such a barrel or system as it is manufactured; or
 - c. are not constructed in accordance with plans approved by the Association.

5. Additional Restrictions if Improvements are Visible. If any part of the improvement will be visible from the street, another lot, or common area, the Association may impose restrictions on the size, type, materials, and shielding of, the improvement(s) (through denial of plans or conditional approval of plans).

SECTION V. XERISCAPING

1. Philosophy: In light of the frequent and persistent drought conditions in the area, the ACC is providing the following information and guidelines for xeric landscape renovations.

The primary purpose of the ACC is to ensure that improvements made on properties in Scofield Farms are tasteful, do not detract from property values, the livability and/or value of our neighborhood, and are in balance with the architecture, needs and desires of the Scofield Farms community.

Xeriscaping means using native and adaptive plants that can grow and sustain themselves with low water requirements and tolerate heat and drought conditions. The City of Austin is vigorously promoting xeriscaping for resource conservation and environmental protection and as such the ACC encourages such projects. However, in accordance with the primary purpose of the ACC, 'zero' landscaping (implying no landscaping whatsoever) is not allowed.

The advantages of Xeriscaping include:

- Substantial cost savings on water bills
- Conservation of diminishing water resources during drought periods
- Prevention of pollution of surface and ground water from environmentally harmful runoff
- Pride in knowing you are doing something substantial to protect our fragile environment

As a lot of homeowners undertake landscape renovation before the heat of summer, the ACC is providing the following information and guidelines to increase awareness and to ensure that renovations do not detract from property values.

2. Approval for changes: Prior to initiating any change in the visible landscape, Owners must submit an Architectural Control Committee Approval Request Form (available at <http://www.scofieldfarms.org>). The request must include an outline of the project and a design plan, as well as details on the types of plants, the ground covers, the border material(s), and the hardscape materials to be used. The ACC may request additional information or changes to the plans before final approval. In all such cases, the ACC will work with the Owners to come to a mutually acceptable solution. It may take the ACC up to 30 days to approve the request but most requests may be approved within 10 days. Installation of any proposed xeric landscape may not begin until the ACC has approved the request.
5. Turf Grass: The ACC will generally require that at least 25% and up to 50% of the visible lawn area contains some form of sodded grass. The exact requirement of the turf may vary from property to property and is dependent on the specific landscape plan. The easement strip between the public sidewalk and the curb does not count towards the 25% to 50% turf area.

Owners should consider replacing "thirsty" turf grasses such as St. Augustine with turf that has lower water requirements. Residents should also consider converting the narrow easement strips between the public sidewalks and the street curb from turf grass to xeriscaped areas, as these areas are hard to water without street runoff.

The ACC may approve artificial turf on a case-by-case basis depending on the situation of the Owner.

6. Plants: It is recommended to use plants adapted to the pH soil conditions created by the non-turf materials used (i.e., don't use acid loving plants along with alkaline crushed limestone covering, whereas acid loving plants would do well with a ground hardwood mulch covering and native plants

would do well with limestone or crushed granite). Mulching is encouraged to retain moisture in the soil and around plants, but mulch cannot be substituted for turf grass. Sickly and dying plants must be removed or replaced. Certain plants determined by the City of Austin to be invasive will not be approved for planting by the ACC. See the City of Austin "Native and Adapted Landscape Plants" book. Most common examples of such plants include varying forms of Nandina, running varieties of bamboo, Ligustrums/Privet, Photini, Vitex, and Chinaberry Tree.

7. **Hardscapes, rock, gravel, cactus:** Hardscapes can include (subject to ACC approval) large boulders, or other natural materials that are used as part of xeric landscaping design.
8. **Borders:** Non-turf planted areas must be bordered to define the xeriscaped area clearly from turfed areas. Such areas must be kept maintained at all times (plants trimmed and thinned, weeded, and borders edged) to ensure an attractive appearance. No plants may encroach onto sidewalks, curbs, or streets.
9. **Safety:** For public safety, no plant with thorns, spines, or sharp edges may be used within 6' of the public sidewalk or clear zone. The term "clear zone" is used to describe the generally flat and unobstructed area that is provided beyond the travel lanes, per the City of Austin Transportation Criteria Manual. For public safety, it is recommended that no boulders or large rocks exceeding twelve inches (12") be used on strips between the public sidewalks and the street curb.
10. **Maintenance:** Xeric landscapes are subject to the same requirements as other landscaping and must be maintained at all times to ensure an attractive appearance. Xeriscape landscapes may require less mowing but additional effort may be required to maintain a weed free landscape. Plants must be trimmed, beds must be kept weed-free and borders must be edged. No plants may encroach on public sidewalks. Perennials which die back during winter must be cut back to remove dead materials during winter. This includes most ornamental grasses and other flowering perennials that go dormant to the ground in winter.

Summary:

- The ACC will require at least 25% and up to 50% of turf grass in publicly visible areas as long as other guidelines are met.
- Owners must submit the ACC Approval Request Form for approval. It may take up to 30 days for approval. Installation of the xeric landscape may not begin until the request has been approved.
- Non-turf planted areas must be bordered to define the xeric area clearly from turfed areas.
- Xeriscaped area, as with the rest of the landscape, must be kept maintained at all times (plants trimmed and thinned, weeded, and borders edged) to ensure a reasonably attractive appearance.
- No plants may encroach onto sidewalks, curbs, or streets. No plants with thorns, spines, or sharp edges should be used within six feet (6') of the public sidewalks (clear zone).
- No boulders or large rocks exceeding twelve inches (12") should be used on strips between the public sidewalks and the street curb.
- Sickly and dying plants must be removed or replaced. Perennials or ornamental grasses which die back in winter must be cut back to remove dead areas.

Recommendations:

- Good turf grasses for our area include Zoysia, Bermuda and Buffalo grass. However, no one turf grass is ideal for all situations. Therefore, it is highly recommended for all Owners to carefully consider the amount of sunlight the lawn receives, slope and the quality of soil before choosing a new turf. More information on turf grasses can be found in the "Grow Green" booklet.
- Manually pulling out weeds is recommended as the most environmentally sensitive method of weed control.
- Using toxic chemicals for weed control is highly discouraged.

- The ACC highly recommends that Owners study the maintenance requirements for xeric landscapes before undertaking such projects as upkeep for a xeriscaped law is oftentimes more time consuming (even if it is less expensive overall).
- For more information and recommendations on plants to use and ideas on xeric landscapes, pick up a copy of the City of Austin's free booklet Native and Adaptive Landscape Plants, an Earth Wise Guide for Central Texas, commonly known as the "Grow Green" book. These are free at any garden center or plant nursery and can be downloaded from the City of Austin's website. This booklet contains photos and a wealth of information about plants from "Trees to Turf" that are recommended for our area in order to have "water wise" landscaping.

SECTION VI. FENCES

1. **Fences.** Each owner has the duty, at his own cost and expense, to maintain, repair, and replace any fence situated on or appurtenant to his lot, such that it remains in good, neat, and attractive condition. What constitutes good, neat and attractive condition shall be according to the sole reasonable discretion of the board. No owner may make a change to a fence (including changes to color, materials, height, or any other characteristics) without the approval of the ACC pursuant to Section 6.6 of the Declaration.

When a fence acts as a boundary fence that separates two owners' yards, the owners share a joint duty to maintain, replace, and repair the fence such that it remains in good, neat, and attractive condition, and such owners are equally responsible for all costs of maintenance. Any fence separating two owners' yards is presumed to be a boundary fence unless acceptable proof (in the form of a survey) is submitted and confirmed by the board that the fence is wholly situated on only one lot.

If an owner fails to maintain in good, neat, and attractive condition any fence situated on or appurtenant to his lot, the Association shall have the right, but not the obligation, to, after 24 hours notice, enter any lot for the purpose of maintaining, repairing, or replacing the fence pursuant to Section 5.5(b) of the Declaration. The expense incurred by the Association in connection with the entry upon any lot and the maintenance, repair, or replacement work conducted thereon shall be a personal obligation of the owner(s) responsible for the maintenance of the fence, and shall be collectible in the manner described in Declaration §5.5(b).

SECTION VII. RELIGIOUS DISPLAYS

1. **General.** The following rule outlines the restrictions applicable to religious displays in order to permit them while also striving to maintain an aesthetically harmonious and peaceful neighborhood for all neighbors to enjoy. Allowed religious displays are limited to displays motivated by the resident's sincere religious belief².
2. **Prohibited Items.** No religious item(s) displayed may:
 - a. threaten the public health or safety;
 - b. violate a law³;
 - c. contain language, graphics, or any display that is patently offensive to a passerby;
 - d. be installed on property owned or maintained by the association;
 - e. be installed on property owned in common by two or more members of the association;
 - f. be located in violation of any applicable building line, right of way, setback, or easement; or
 - g. be attached to a traffic control device, street lamp, fire hydrant, or utility sign, pole, or fixture.
3. **Parameters.** All religious displays must be located within 10' of the dwelling's frontmost building line (i.e. within 10' of the front facade of the dwelling.) Displays may not be located within building

² Religion relates to faithful devotion to a god or gods or the supernatural. Religious displays are different than signs or other figures related to a cause. For example "Save the Whales" or other movements/causes are not considered religious displays.

³ Other than a law prohibiting the display of religious speech. Please note that the First Amendment to the U.S. Constitution is not applicable to private organizations like clubs or community associations; the First Amendment protects certain speech from governmental restraints.

setbacks. No portion of the display may extend above the lowest point of the dwelling's front roof line. All displays must be kept in good repair. Displays may not exceed 5' in height x 3' in width x 3' in depth. The number of displays is limited to three. This paragraph 3 shall not apply however to seasonal religious holiday decorations as described in paragraph 4. All displays other than seasonal religious displays must receive prior approval from the association's architectural reviewing body prior to installation, except for up to one display on any exterior door or door frame of the home that is 25 square inches or smaller. For example, and without limitation, no prior permission is required from the association to place a cross, mezuzah, or other similar religious symbol smaller than 25 square inches on the home's front door or door frame. If the dedicatory instruments do not designate an architectural reviewing body (such as an architectural control committee), the approval must be received from the board.

4. **Seasonal Religious Holiday Decorations.** Seasonal religious holiday decorations are temporary decorations commonly associated with a seasonal holiday, such as Christmas or Diwali lighting, Christmas wreaths, and Hanukkah or Kwanzaa seasonal decorations. The Board has the sole discretion to determine what items qualify as Seasonal Religious Holiday Decorations. Unless otherwise provided by the Declaration, Seasonal Religious Holiday Decorations may be displayed no more than 30 days before and no more than 21 days after the holiday in question.
5. **Other displays.** Non-religious displays are governed by other applicable governing document provisions.
6. **Removal.** The Association may remove or cause to be removed any item in violation of the terms and provisions of this policy.

SECTION VIII. WI-FI SERVICES IN COMMON AREA

USAGE POLICY & AVAILABILITY

1. **The Service.** Wi-Fi (the "Service") is offered in the pool area to all Owners free of charge. Device must be able to access a web browser to agree to the provider's Terms and Conditions and enter a Code in order to function. An Owner using the Service is referred to herein as a "User".
2. **User Agreement.** All Users must agree to the Terms of Use with every login or may not use the Service. The Terms of Use that follow below shall be the basis for the Terms of Use presented at login, and shall be a part of these Rules and are expressly incorporated into the Rules. The exact language of the Terms of Use presented at login may change from time to time without notice; users should read the Terms of Use with every login, as accepting the Terms of Use is a binding legal agreement.
3. **Illegal Activities.** User shall not use the Wi-Fi network for any illegal activities.
4. **Filtering.** User understands that the Association may but has no duty to filter access to certain sites, limit bandwidth, limit connection upload and download speeds, and monitor traffic.
5. **No Guarantees or Representations.** Association makes no guarantees or representations as it relates to where the Wi-Fi network will work within the community.
6. **Network Speed.** Association makes no guarantees or representations as it relates to the speed of the network. Association cannot control or predict Services being provided by Service provider.
7. **Ultimate Responsibility.** User is ultimately responsible for any violations, fines and/or fees incurred as it relates to improper use of the network, including by his tenants, residents, guests or invitees.
8. **Association Not Responsible.** The Association is not responsible for monitoring Users' online activity and thus the Association shall not be held responsible for any fees, fines, issues, theft, illegal activities, etc. that may arise from using the Service.

9. **Right to Modify.** Association reserves the right to modify connection speeds, set maximum speeds, and throttle the bandwidth being provided at any time without notice.
10. **Right to Cancel or Suspend.** Association reserves the right to cancel and/or suspend all Services within the community without notice, including suspending Service to Owners who are in violation of the governing documents of the community, including Owners who are delinquent in paying any sums due to the Association.
11. **Security Risks.** User understands there are security risks with using the Service. User should ensure their machine is secured. Association will not be responsible in the event un-authorized access occurs while using the Service. It is recommended Users ensure their system is patched and running proper security software.
12. **Login.** Login should not be shared with anyone outside of your residence. Login is for the exclusive use of residents and their guests.
13. **Technical Support.** The Association does NOT provide technical support for Services as it relates to connection issues, securing a machine, etc.
14. **Service Down.** In the event the entire connection is down please notify the Association's managing agent.
15. **Maintenance.** Association will use best efforts to maintain the Service but makes no guarantees relating to uptime.

Internet Service Terms of Use

By using the Wi-Fi services provided by the association (the "Service") you agree to be bound by these Terms of Use. If you do not agree with these Terms of Use, disconnect from and stop using this Internet Service. This Service is provided for owners and residents of SCOFIELD RESIDENTIAL OWNERS ASSOCIATION, INC. THIS IS A BINDING LEGAL AGREEMENT (this "Agreement"). PLEASE READ THESE TERMS AND CONDITIONS OF USE CAREFULLY BEFORE USING THIS SERVICE. This Agreement governs your use of this Service (collectively, the "Service") and is by and between SCOFIELD RESIDENTIAL OWNERS ASSOCIATION, INC. (referred to herein as "PROVIDER", "Association", "we", "us", or "our") and you, on behalf of yourself and everyone you represent ("you").

By using, viewing, transmitting, caching, storing and/or otherwise utilizing the Service, the Services or functions offered in or by the Service and/or the contents viewable through the Service in any way, you have agreed to each and all of the terms and conditions set forth below, and waive any right to claim ambiguity or error in this Agreement. If you do not agree to each and all of these terms and conditions please do not use the Service and leave the Service immediately. We reserve the right, at our sole and absolute discretion, to change, modify, add, or remove portions of these terms at any time without notice and, unless otherwise indicated, such changes will become effective immediately; therefore, please check these terms periodically for changes. Your continued or subsequent use of the Service following the posting of changes to this Agreement will mean you accept those changes. Please print and retain a copy of this Agreement, as it may be changed from time to time, for your records.

ELIGIBILITY:

The Service is available only to residents of the Association that can form legally binding contracts under applicable law. Without limiting the foregoing, the Service is not available to minors without consent and supervision of a parent or guardian. If you do not qualify, you are NOT AUTHORIZED TO USE THIS SERVICE.

The association may choose to provide wireless and/or wired Internet Service in the pool area and/or other areas. The Service is provided as a convenience to owners and residents and may not be available at all times. The Internet Service is provided on an "as is" and "as available" basis. Access to the Service in some areas may be limited or unavailable. The association may decide to terminate or make changes to this Service at any time. Any owners that must rely on having full time Internet access should secure their own Internet connection from an Internet Service provider of their choice. Access to the wireless Internet Service is provided under the following conditions:

a) Internet Service is provided for the use of residents and owners only. Guests may not use the Internet Service.

b) Use of the Internet Service constitutes your acceptance these rules and any and all revisions. If you do not agree with these rules your sole and exclusive remedy will be to terminate and discontinue your use of this Service.

c) You may not use this Service in any manner that may cause harm or injury to other persons or property, or that may damage the Service. The association reserves the right to cancel or terminate your access to the Service, at the associations' discretion, if the association determines that you have misused or are misusing the Service.

d) If you bypass, tamper with or disable any portion of the Service or related equipment, including without limitation the theft of bandwidth you are in violation of these Terms of Use and the association may suspend or terminate your use of this Service and you may be subject to additional criminal and civil penalties.

e) The Service provides you with access to the Internet. You acknowledge that the materials, content and information available on the Internet such as communications by third parties or links to any sites or resources, are created and controlled by sources other than the association. The association makes no warranty regarding such materials, content or information. Under no circumstances shall the association be held liable for any materials, information, goods, services, or content available on or through the Internet or accessed by means of the Service, or for any harm related thereto, and any complaints, concerns or questions you may have relating to such content should be forwarded directly to the responsible source or sources.

f) If you are younger than 18 years old, then you must obtain the permission of your parent or guardian to use the Service.

g) Your privacy is very important to the association and we will always endeavor to act in a responsible manner with respect to any personal information that we may obtain from you. A log of certain information including IP addresses and ports that you connect to may automatically be collected and maintained for system performance and maintenance purposes.

h) If you use the Internet Service, you understand that others may be able to see and observe your use of the Internet Service.

i) The Internet Service has a limited amount of bandwidth that must be shared by all other users at a given time. We ask that you be respectful of everyone and limit your use of file-sharing Services or other applications that download or upload high volumes of data. If you routinely use a large amount of bandwidth this Internet Service is not for you. Residents that use the Internet for high bandwidth applications should secure their own Internet connection. This Internet Service is for the casual user for surfing the web, checking email, etc. The association reserves the right to limit the connection speed or suspend Service to any user it believes, in it's sole discretion, may be using excessive bandwidth that is degrading the Service quality for other users.

j) The use of peer-to-peer computer file sharing programs (e.g., KaZaA, Morpheus, Limewire, iMesh, Gnutella, Grokster, and all similar programs and their successors) that are primarily employed to share

copyrighted works is prohibited on this Internet Service. Where possible, banned file swapping may be intercepted and blocked by network control systems. The use of methods designed to evade that blocking is prohibited and may result in permanent termination of your use of this Internet Service. **The use of a peer-to-peer file-sharing program is grounds for your access to this Service to be terminated indefinitely without warning, and is a violation of Association Rules, and appropriate enforcement action in the form of fines or other legal remedies may be taken.**

k) In accordance with the Digital Millennium Copyright Act, the association forbids the copying, distribution, downloading, and uploading of copyrighted materials on any personal or computer system connected to this Internet Service. These materials include, but are not limited to, text (including e-mails and web information), graphics, art, photographs, music, film, and software.

l) If you use the Internet Service, you understand that others may be able to access your computer or view, copy, modify, delete or damage files on your computer. It is your responsibility to make sure your computer is setup with a firewall and your hardware & software are configured properly to protect it from other users of the Internet Service. The association and its equipment will not protect you from other potentially malicious persons from accessing your computer. This is your responsibility. If you don't know how to protect your computer properly, do not use the Internet Service.

m) Users may not connect access points or retransmit access to this network without the express written consent of the association.

n) The association does not make any warranty that the Service will be uninterrupted, timely, secure, or error free or that software defects will be corrected or that this site or the server that makes it available is free of viruses or other harmful components.

o) If you use the Internet Service, you understand that the association and management company do not provide assistance or technical support connecting your computer to the Internet. You are responsible for setting up your own equipment.

DIGITAL SIGNATURE PROVISIONS:

You represent and warrant that you have the legal right, power and authority to agree to the terms of this Agreement on behalf of yourself and anyone you represent participating in the Service. You further agree that your use constitutes an electronic signature as defined by the Electronic Signatures in Global and National Commerce Act ("E-Sign") and the Uniform Electronic Transactions Act ("UETA") and that you have formed, executed, entered into, accepted the terms of and otherwise authenticated this Agreement and acknowledged and agreed that this Agreement is an electronic record for purposes of E-Sign, UETA and the Uniform Computer Information Transactions Act and as such is completely valid, has legal effect, is enforceable, and is binding on, and non-refutable by you and the member, buyer or supplier on whose behalf you are acting.

ELECTRONIC TRANSMISSIONS, INCLUDING THE INTERNET, ARE PUBLIC MEDIA, AND ANY USE OF SUCH MEDIA IS PUBLIC AND NOT PRIVATE. INFORMATION RELATED TO OR ARISING FROM SUCH USE IS PUBLIC, OR THE PROPERTY OF THOSE COLLECTING INFORMATION, AND NOT PERSONAL OR PRIVATE INFORMATION.

YOU AGREE THAT YOU USE THE SERVICE AT YOUR OWN RISK. THE CONTENT, SERVICES AND MATERIALS IN OR AVAILABLE THROUGH THE SERVICE ARE PROVIDED "AS IS" AND ON AN "AS AVAILABLE" BASIS WITHOUT REPRESENTATIONS OR WARRANTIES OF ANY KIND EITHER EXPRESS, IMPLIED OR STATUTORY.

INDEMNIFICATION:

You are entirely responsible for maintaining the confidentiality of your password and for all activities that occur under your usage of the Service. **You hereby indemnify, defend and hold Association and their**

owners, partners, representatives, board members, and each of such person's or entities' officers, directors, agents, contractors, subcontractors, guests, residents, visitors, licensees, invitees, permittees and employees (collectively, the "Indemnified Parties") harmless from and against any and all allegations, demands, claims, liabilities, damages, fines, penalties or costs of whatsoever nature (including reasonable attorneys' fees) and whether by reason of death of or injury to any person or loss of or damage to any property or otherwise ("Claims") arising out of or in any way connected with this Agreement, the Services or products provided to you by the Service or any related act or failure to act by you and whether or not occasioned or contributed to by the negligence of THE PROVIDER or any agent or employee of the Indemnified Parties or any of them (except as and to the extent prohibited by applicable law) or Claims arising from your account, including, without limitation, any Claims related to infringement by you of the intellectual property rights of any person, including without limitation, copyright, patent, trade secret, trade mark, artist rights, privacy, publicity or rights under other intellectual property laws. In the event that any Claim is made or any action or proceeding is brought against the Indemnified Parties, or any of them, arising out of or connected with this Agreement, any such Indemnified Party may, by reasonable notice to you, require you, at your expense, to resist such Claim or take over the defense of any such action or proceeding and employ counsel for such purpose, such counsel to be subject to the prior written approval of such Indemnified Party, which approval shall be deemed to have been given hereby in the case of counsel acting for your insurance underwriters engaged in such resistance or defense. You shall cooperate with us in the defense of any Claim. We reserve the right, at our own expense, to assume the exclusive defense and control of any matter otherwise subject to indemnification by you.

LIMITATION OF LIABILITY: TO THE FULLEST EXTENT ALLOWED BY LAW:

UNDER NO CIRCUMSTANCES, INCLUDING, BUT NOT LIMITED TO, NEGLIGENCE, SHALL WE BE LIABLE FOR ANY LOST PROFITS, COST OF COVER, DIRECT, INDIRECT, INCIDENTAL, SPECIAL, RELIANCE, CONSEQUENTIAL OR PUNITIVE DAMAGES THAT RESULT FROM THE USE OF, OR THE INABILITY TO USE, THE SERVICE OR THE SERVICES OR FUNCTIONS OF THE SERVICE OR ARISING OUT OF YOUR ACCESS TO, OR INABILITY TO ACCESS, THE SERVICE OR YOUR RELIANCE UPON, THE SERVICE OR THE SERVICES, CONTENT OR MATERIALS IN, OR FUNCTIONS OF, THE SERVICE, PROVISION OF, OR FAILURE TO PROVIDE SERVICES, OR INFORMATION, OR ANY DAMAGES WHATSOEVER RESULTING FROM LOSS OF USE, DATA, OR PROFITS, WHETHER OR NOT WE HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, AND ON ANY THEORY OF LIABILITY (INCLUDING NEGLIGENCE). IN ADDITION, WE HAVE NO DUTY TO UPDATE THE SERVICE OR THE CONTENTS THEREOF. IN NO EVENT SHALL OUR TOTAL LIABILITY TO YOU FOR ALL DAMAGES, LOSSES, AND CAUSES OF ACTION (WHETHER IN CONTRACT, TORT (INCLUDING, BUT NOT LIMITED TO, NEGLIGENCE, OR OTHERWISE) EXCEED THE AMOUNT PAID BY YOU, IF ANY, FOR ACCESSING THE SERVICE. IF YOU ARE DISSATISFIED WITH THE SERVICE OR ANY OF THE PRODUCTS, SERVICES, MEMBERS, SUPPLIERS AND/OR BUYER OFFERED IN CONNECTION THEREWITH OR ASSOCIATED THEREWITH, AS THE CASE MAY BE, YOUR SOLE AND EXCLUSIVE REMEDY SHALL BE TO DISCONTINUE USE OF THE SERVICE.

RELEASE:

BY UTILIZING THE SERVICE, ALL USERS ACKNOWLEDGE AND AGREE THAT THE INDEMNIFIED PARTIES ARE RELEASED, DISCHARGED AND HELD HARMLESS FROM AND ARE NOT RESPONSIBLE OR LIABLE FOR ANY LIABILITY WITH RESPECT TO ALL ASPECTS OF THE SERVICE (INCLUDING WITHOUT LIMITATION, ANY ILLNESS, LOSSES, LITIGATION, PERSONAL INJURY, DEATH, PROPERTY DAMAGE, AND CLAIMS BASED ON PUBLICITY RIGHTS, DEFAMATION, OR INVASION OF PRIVACY, REASONABLE ATTORNEYS' FEES AND COURT COSTS) THAT MAY OCCUR FROM USE OF THE SERVICE OR THE ACCEPTANCE, POSSESSION, USE OR MISUSE OF INFORMATION, MATERIALS, SERVICES OR PRODUCTS RELATED THERETO OR ACQUIRED THEREFROM. WE RESERVE THE RIGHT AT ANY TIME AND WITHOUT LIABILITY TO RESTRICT OR REFUSE ACCESS TO THE SERVICE AND ITS

SERVICES, CONTENT, MATERIALS AND FUNCTIONS TO ANYBODY. WE FURTHER RESERVE THE RIGHT TO SEEK ANY FORM OF RELIEF, INCLUDING WITHOUT LIMITATION ATTORNEYS' FEES, RELATED TO FRAUDULENT OR ILLEGAL ACTIVITY CONNECTED WITH THE USE OF THE SERVICE.

SECTION IX. RECORD PRODUCTION

1. **Effective Date.** Notwithstanding any language to the contrary and regardless of date of adoption of these Rules, the effective date of this Section is January 1, 2012.
2. **Conflict with Other Provisions.** Per state law, this Section controls over any provision in any other Association governing document to the contrary, including Declaration Section 5.4(f) and Bylaws Section 7.4, to the extent of any conflict.
3. **Request for Records.** The Owner or the Owner's authorized representative requesting Association records must submit a written request by certified mail to the mailing address of the Association or authorized representative as reflected on the most current filed management certificate. The request must contain:
 - a. sufficient detail to describe the books and records requested, and
 - b. an election either to inspect the books and records before obtaining copies or to have the Association forward copies of the requested books and records.
4. **Timeline for record production.**
 - a. **If inspection requested.** If an inspection is requested, the Association will respond within 10 business days by sending written notice by mail, fax, or email of the date(s) and times during normal business hours that the inspection may occur. Any inspection will take place at a mutually agreed time during normal business hours, and the requesting party must identify any books and records the party desires the Association to copy.
 - b. **If copies requested.** If copies are requested, the Association will produce the copies within 10 business days of the request.
 - c. **Extension of timeline.** If the Association is unable to produce the copies within 10 business days of the request, the Association will send written notice to the Owner of this by mail, fax, or email, and state a date, within 15 business days of the date of the Association's notice, that the copies or inspection will be available.
5. **Format.** The Association may produce documents in hard copy, electronic, or other format of its choosing.
6. **Charges.** Per state law, the Association may charge for time spent compiling and producing all records, and may charge for copy costs if copies are requested. Those charges will be the maximum amount then allowed by law under the Texas Administrative Code. The Association may require advance payment of actual or estimated costs. As of the time of drafting, a summary of the maximum permitted charges for common items are:
 - a. Paper copies - 10¢ per page
 - b. CD - \$1 per disc
 - c. DVD - \$3 per disc
 - d. Labor charge for requests of more than 50 pages - \$15 per hour (Labor for fewer than 50 pages may be charged if any requested documentation is stored at a remote location.)
 - e. Overhead charge for requests of more than 50 pages - 20% of the labor charge
7. **Private Information Exempted from Production.** Per state law, the Association has no obligation to

provide information of the following types:

- a. Owner violation history
 - b. Owner personal financial information
 - c. Owner contact information other than the owner's address
 - d. Information relating to an Association employee, including personnel files
8. Existing Records Only. The duty to provide documents on request applies only to existing books and records. The Association has no obligation to create a new document, prepare a summary of information, or compile and report data.

SECTION X. RECORD RETENTION

1. Effective Date. Notwithstanding any language to the contrary and regardless of the date of adoption of these Rules, the effective date of this Section relating to record retention is January 1, 2012.
2. Conflict with Other Provisions. Per state law, this Section controls over any provision in any other Association governing document to the contrary, including Declaration Section 5.4(f), to the extent of any conflict.
3. Record Retention. The Association will keep the following records for at least the following time periods:
 - a. Contracts with terms of at least one year; 4 years after expiration of contract
 - b. Account records of current Owners; 5 years
 - c. Minutes of Owner meetings and Board meetings; 7 years
 - d. Tax returns and audits; 7 years
 - e. Financial books and records (other than account records of current Owners); 7 years
 - f. Governing documents, including Articles of Incorporation/Certificate of Formation, Bylaws, Declaration, Rules, and all amendments; permanently
4. Other Records. Records not listed above may be maintained or discarded in the Association's sole discretion.

SECTION XI. PAYMENT PLANS

1. Eligibility for Payment Plan.

Standard Payment Plans. An Owner is eligible for a Standard Payment Plan (*see* Rule (3) below) *only* if:

- a. The Owner has not defaulted under a prior Payment Plan with the Association in the prior 24-month period;
- b. The Owner requests a Payment Plan no later than 45 days after the Association sends notice to the Owner via certified mail, return receipt requested under Property Code §209.0064 (notifying the owner of the amount due, providing 45 days for payment, and describing the options for curing the delinquency). It is the Owner's responsibility to confirm that the Association has received the Owner's request for a Payment Plan within this 45-day period. It is recommended that requests be in writing; and
- c. The Association receives the executed Standard Payment Plan and the first payment within 15 days of the Standard Payment Plan being sent via email, fax, mail, or hand delivered to the Owner.

Other Payment Plans. An Owner who is not eligible for a Standard Payment Plan may still request that the Association's Board grant the Owner an alternate payment plan. Any such request must be directed to the person or entity currently handling the collection of the debt (i.e., the property manager

or Association's attorney). The decision to grant or deny an alternate Payment Plan, and the terms and conditions for any such plan, will be at the sole discretion of the Association's Board.

2. Standard Payment Plans. The terms and conditions for a Standard Payment Plan are:

- a. Term. Standard Payment Plans are for a term of six (6) months.
- b. Payments. Payments will be made at least monthly and will be roughly equal in amount or have a larger initial payment (small initial payments with a large balloon payment at the end of the term are not allowed). Payments must be received by the Association at the designated address by the required dates and may not be rejected, returned or denied by the Owner's bank for any reason (i.e., check returned NSF).
- c. Assessments and other amounts coming due during plan. The Owner will keep current on all additional assessments and other charges posted to the Owner's account during the term of the Payment Plan, which amounts may but need not be included in calculating the payments due under the plan.
- d. Additional charges. The Owner is responsible for reasonable charges related to negotiating, preparing and administering the Payment Plan, and for interest at 18 percent, all of which shall be included in calculating the total amount due under the plan and the amount of the related payments. The Owner will not be charged late fees or other charges related to the delinquency during the time the Owner is complying with all terms of a Payment Plan.
- e. Contact information. The Owner will provide relevant contact information and keep same updated.
- f. Additional conditions. The Owner will comply with such additional conditions under the plan as the Board may establish.
- g. Default. The Owner will be in default under the plan if the Owner fails to comply with any requirements of these Rules or the Payment Plan agreement.

3. Account Sent to an Attorney/Agent for Formal Collections. An Owner does not have the right to a Standard Payment Plan after the 45-day timeframe referenced in Paragraph 2(b). Once an account is sent to an attorney or agent for collection, the delinquent Owner must communicate with that attorney or agent to arrange for payment of the debt. The decision to grant or deny the Owner an alternate Payment Plan, and the terms and conditions of any such plan, is solely at the discretion of the Board.

4. Default. If the Owner defaults under any Payment Plan, the Association may proceed with any collection activity authorized under the governing documents or state law without further notice. If the Association elects to provide notice of default, the Owner will be responsible for all fees and costs associated with the drafting and sending of such notice. All late fees and other charges that otherwise would have been posted to the Owner's account may also be assessed to the Owner's account in the event of a default.

Any payments received during a time an Owner is in default under any Payment Plan may be applied to out-of-pocket costs (including attorneys fees for administering the plan), administrative and late fees, assessments, and fines (if any), in any order determined by the Association, except that fines will not be given priority over any other amount owed but may be satisfied proportionately (e.g. a \$100 payment may be applied proportionately to all amounts owed, in proportion to the amount owed relative to other amounts owed).

5. Board Discretion. To the extent allowed by law, the Association's Board may vary the obligations imposed on Owners under these Rules on a case-by-case basis as it may deem appropriate and reasonable, including lengthening or shortening the standard Payment Plan terms, provided state law

minimum and maximum terms are complied with. No such action shall be construed as a general abandonment or waiver of these Rules, nor vest rights in any other Owner to receive a Payment Plan at variance with the requirements set forth in these Rules.

6. **Legal Compliance.** These Payment Plan Rules are intended to comply with the relevant requirements established under Texas Property Code §209. In case of ambiguity, uncertainty, or conflict, these Rules shall be interpreted in a manner consistent with all such legal requirements.

SECTION XII. VOTING

1. **Conflict with Other Provisions.** Per state law, this Section controls over any provision in any other Association governing document to the contrary, including Bylaws Sections 4.3-through 4.6, to the extent of any conflict. The Board may dictate the form for all proxies, ballots, or other voting instruments or vehicles. No form other than the form put forth by the Board will be accepted.
2. **Voting Methods.** In addition to voting methods allowed by the Association's governing documents, notwithstanding any language in the governing documents to the contrary, per state law, the Board may in its discretion allow voting rights of Owners to be exercised in any one or more of the following manners: in person by proxy, by absentee ballot, or by electronic ballot.
3. **Form of Proxy or Ballot.** The Board may dictate the form for all proxies, ballots, or other voting instruments or vehicles. No form other than the form put forth by the Board will be accepted.
4. **Absentee and Electronic Ballots.** Any absentee ballot must contain notice language as required by state law. Any absentee or electronic ballot will be counted for quorum purposes only for items appearing on the ballot. Any vote cast as a meeting of the Association will supersede any absentee ballot or electronic ballot submitted by the Owner for that proposal. Any vote cast by absentee or electronic ballot will not be counted if the proposal voted on differs from the exact language on the absentee or electronic ballot.

SECTION XIII. NOTICE OF BOARD MEETINGS

1. **Effective Date.** Notwithstanding any language to the contrary and regardless of date of adoption of these Rules, the effective date of this Section IX is January 1, 2012.
2. **Conflict with Other Provisions.** Per state law, this Section IX controls over any provision in any other Association governing document to the contrary, including Bylaws Sections 6.8 through 6.10, to the extent of any conflict.
3. **Notice of Board Meetings.** Except as otherwise provided in these Rules, all regular and special Board meetings must be open to Owners, and notice of all regular and special Board meetings will be given either:
 - a. By mail to all Owners, at least 10 but no more than 60 days in advance of the meeting; OR
 - b. By, at least 72 hours in advance of any meeting:
 - i. Either posting notice in a conspicuous place in the common area (or with the Owner's permission, a conspicuous place on a private lot), *or* on an Association website, *and*
 - ii. Emailing notice to all Owners who have registered their email address with the Association in accordance with these Rules.

Notice pursuant to this Section must contain the date, hour, place, and general subject of the meeting, including a general description of any matter to be brought up in executive session.

4. **Exception to Notice Requirement.** The notice described in (3) above is not required if:

- a. The Board meets by telephone, email, or in any alternate manner whereby all directors speak their opinion and are heard (or in the opinion/discussion can be read via email) by all other directors;
- b. The Board acts by unanimous written consent on routine or administrative matters; *or*
- c. The meeting is necessary to address an urgent or emergency situation that requires immediate action.

However, notice must be given per paragraph (3) above for any meeting at which the Board takes formal action (takes a binding vote) regarding: levying a fine; levying a damage assessment; initiation of foreclosure actions; initiation of enforcement actions (except for temporary restraining orders or violations involving a health or safety threat; increases in assessments; levying special assessments; appeals from denials of ACC approval; or suspending rights of an Owner before the Owner has an opportunity to appear before the Board.

- 5. Summary of Actions Taken Without Board Meeting. Board actions taken without notice given under paragraph (3) must be summarized orally at the next Board meeting for which notice under paragraph (3) is given, including a summary of any actual or estimated expenditures approved, and documented in the minutes of the next noticed Board meeting.
- 6. Definition of "Meeting"; Work Sessions. A meeting or other gathering at which one or more Board members is present is not a Board meeting for purposes of this Rule unless formal action is taken, do not require notice and need not be open to Owners.
- 7. Executive Session. The Board has the right to adjourn a Board meeting and reconvene in a closed executive session for issues involving personnel matters, pending or threatened litigation, contract negotiations, enforcement actions, confidential attorney communications, matters involving the invasion of Owners' privacy, or matters that are to remain confidential by request of the affected parties and agreement of the Board. Decisions made in executive sessions must be summarized orally in general terms, including any expenditures approved, and recorded in the minutes.

SECTION XIV. TRANSFER FEES

- 1. Transfer Fees. In addition to fees for issuance of a resale certificate and any updates or re-issuance of the resale certificate pursuant to Texas Property Code Ch. 207, transfer fees are due upon the sale of any property in accordance with the then-current fee schedule, including any fee charged by the Association's managing agent associated with a transfer of property. It is the owner/seller's responsibility to determine the then-current fees. Transfer fees not paid at or before closing are the responsibility of the purchasing owner and will be assessed to the owner's account accordingly. The association may require payment in advance for issuance of any resale certificate or other transfer-related documentation.

If a resale certificate is not requested and a transfer occurs, all fees associated with the transfer, including association record update fees will be the responsibility of the new owner and may be assessed to the unit's account at the time the transfer becomes known. These fees will be set according to the then-current fee schedule of the association or its managing agent, and may be equivalent to the resale certificate fee or in any other amount.

The Association's fee schedule may include (without limitation) fees related to: issuance of a resale certificate, questionnaires requested from lenders/title companies, statements of account, resale certificate updates, working capital fee due at closing, or other such fees."

SECTION XV. EMAIL ADDRESSES

- 1. Email Addresses. An Owner is required to keep a current email address on file with the Association if the Owner desires to receive email communications from the Association. Failure to supply an email

address to the Association or to update the address in a manner required by these Rules may result in an Owner not receiving Association emails. The Association has no duty to request an updated address from an Owner, in response to returned email or otherwise. The Association may require Owners to sign up for a group email, email list serve or other such email subscription service in order to receive Association emails.

2. **Updating Email Addresses.** An Owner is required to notify the Association when email addresses change. Such notice must be in writing and delivered to the Association's managing agent by fax, mail, or email. This notice must be for the sole purpose of requesting an update to the Owner's email address. For example, merely sending an email from a new email address, or including an email address in a communication sent for any other purpose other than providing notice of a new email address, does not constitute a request to change or add the Owner's email in the records of the Association.

SECTION XVI. COVENANT ENFORCEMENT AND FINING POLICY

Summary of Enforcement Policy

1. Send Courtesy Warning Letter (curable violations only - optional)
2. Send 209 Violation Notice (In accordance with Texas Property Code Ch. 209)
3. Levy fines and/or damage assessments as appropriate
4. Subsequent Violation Notices (optional)

The Board may vary from this policy on a case-by-case basis so long as the enforcement process meets state law requirements. Variances may include sending no Courtesy Warning Letter, sending more than one, and/or setting fines at levels other than as indicated on the Standard Fine Schedule.

1. **Types of Violations and Acts Covered.** The Board has adopted this policy to address situations where an owner has committed or is responsible for a violation of the deed restrictions other than by failing to pay assessments or other sums due to the Association. Delinquency violations are handled by an alternate process. This policy also covers situations where an owner or someone the owner is responsible for has damaged Association property.

2. Violation Notices.

- i. **Courtesy Warning Letter (curable violations only).** Upon becoming aware of a deed restriction violation that is curable (*see* Section 3(i) below) and at the sole option of the Board or management professional, the Association may send a Courtesy Warning Letter requesting that the owner cure that violation by a date certain to avoid fines or other enforcement action.
- ii. **209 Violation Notice.** If a violation is not cured in response to any Courtesy Warning Letter or if a Courtesy Warning Letter is not sent, the Board, in addition to all other available remedies, may:
 - a. Levy a fine;
 - b. Suspend the owner's right to use common area, if allowed under the governing documents; and/or
 - c. Charge the owner for damage to common area.

Any such action shall be initiated by sending a 209 Violation Notice to the owner. The 209 Violation Notice shall:

- a. Be in writing and sent certified mail to the most current owner address shown on the Association's records;
- b. Describe the violation or property damage at issue;

- c. State the amount of any fine or property damage charge levied against the owner and the deadline for payment;
 - d. If the violation is curable and does not pose a threat to public health or safety, state a reasonable, specific date by which the owner may cure the violation and avoid any fine levied in the 209 Violation Notice; (there is no right to cure if the violation is incurable, poses a threat to health or safety, or involves damage to property);
 - e. Inform the owner that he has a right to request a Board hearing to discuss the enforcement action on or before the 30th day after the notice was mailed to the owner (*see* Section 6 below);
 - f. Inform the owner that he will be responsible for attorney fees and costs incurred in relation to the violation if the violation continues after a specific date; such fees and costs may be assessed to the owner's account after a hearing is held or, if a hearing is not requested, after the deadline for requesting a hearing has passed;
 - g. Inform the owner that he may have special rights or relief related to enforcement under federal law, including the Servicemembers Civil Relief Act; and
 - h. Otherwise comply with Section 209 of the Texas Property Code and state law.
- iii. Subsequent Violation Notices for continuing or repeat violations. If an owner has been sent a 209 Violation Notice for a particular violation and the same violation continues or a similar violation is committed within six months of the 209 Violation Notice, the Association may levy additional fines either with or without notice to the owner. If it desires to send notice of additional fines, the Association shall do so by means of a Subsequent Violation Notice. A Subsequent Violation Notice may be of any form and sent in any manner, as such notices are not required to comply with Section 209 of the Texas Property Code, including the requirements set forth in Section 2(ii) above.

3. 209 Violation Notices – Curable vs. Uncurable Violations.

- i. Curable Violation. Curable violations are those that are ongoing or otherwise can be remedied by affirmative action. The following is a non-exhaustive list of curable violations: ongoing parking violations; maintenance violations; failing to construct improvements or modifications in accordance with approved plans and specifications; and ongoing noise violations such as a barking dog.
- ii. Uncurable Violation. Uncurable violations include those that are not of an ongoing nature, involve conditions that otherwise cannot be remedied by affirmative action, and those that pose a threat to public health or safety. The following is a non-exhaustive list of uncurable violations: shooting fireworks, committing a noise violation that is not ongoing, damaging common area property, and holding a prohibited gathering.

4. Categories; Standard Fine Schedule. Below is the Standard Fine Schedule for violations. *The Board may vary from this schedule on a case-by-case basis (i.e., set fines higher or lower than indicated below).*

- i. Categories of restrictive covenants. The general categories of restrictive covenants for which the Association may levy fines are (the Association may levy fines for violations of the following restrictive covenants of the Association):
 - 1. Declaration, and any amendments thereto;
 - 2. Bylaws, and any amendments thereto;
 - 3. Rules and policies, including design guidelines, and any amendments thereto; and
 - 4. Articles of Incorporation or Certificate of Formation of the Association, and any amendments thereto.

- ii. Curable Violations – Initial Fine. If an owner is sent a 209 Violation Notice for a curable violation and cures that violation by the deadline in such notice, any fine levied in the 209 Violation Notice shall be waived. If the owner fails to cure the violation by the deadline, any fine levied in the 209 Violation Notice shall be imposed after the time has lapsed for the owner to request a Board hearing, or, if a hearing is timely requested, after the date the hearing is held and a decision is made to uphold the fine.
 - iii. Uncurable Violations – Initial Fine/damage assessment. A fine or property damage assessment may be imposed in a 209 Violation Notice for an uncurable violation, regardless of whether the owner subsequently requests a Board hearing.
 - iv. Subsequent Fines. This Section 4 does not apply to fines levied after the initial fine. (See Section 2(iii) – Subsequent Violations, above).
5. **Standard Fine Schedule.** Below is the Standard Fine Schedule for deed restriction violations. *The Board may vary from this schedule on a case-by-case basis (i.e., set fines higher or lower than indicated below), so long as that decision is based upon the facts surrounding that particular violation. The Board also may change the fine amounts in this Standard Fine Schedule at any time by resolution, with no need to formally amend this Enforcement Policy.*
- i. Curable Violations.
 - a. Courtesy Warning Notice: No fine.
 - b. 209 Violation Notice: \$25.00 fine (daily/weekly or one-time); and/or Suspension of common area usage rights, if allowed under the governing documents.
 - c. Subsequent Violation Notices: \$50.00 fine (daily/weekly or one-time); \$100.00 fine (daily/weekly or one-time); \$125.00 fine (daily/weekly or one-time); (Increases \$25.00 for each additional notice).
 - ii. Uncurable Violations.
 - a. 209 Violation Notice: \$50.00 fine; or Property damage assessment.
 - b. Subsequent Violation Notices: \$75.00 fine; \$100.00 fine; \$125.00 fine; (Increases \$25.00 for each additional notice).
6. **Hearings.** If an owner receives a 209 Violation Notice and requests a hearing in a timely manner, that hearing shall be held in accordance with Section 209.007 of the Texas Property Code⁴. The Board may

⁴ At the time of adoption of this rule, this provision provided for holding the hearing within 30 days after receipt of the owner's request, with the Association giving to the owner, at least 10 days before the hearing, (a) a packet containing all documents, photographs, and communications relating to the matter that the Association intends to introduce at the hearing, if any [failure to meet this deadline (if the Association intends to introduce documents) entitles the owner to an automatic 15 day postponement] and (b) written notice of the date, time and place of the hearing, subject to postponement of up to 10 days on either party's request, or longer by mutual agreement. At the hearing, the Association shall first present its case against the owner and the owner is entitled to present information relevant to the matter. Either party may appear by representative, and each party has the right to make an audio recording of the meeting.

impose rules of conduct for the hearing and limit the amount of time allotted to an owner to present his information to the Board. The Board may either make its decision at the hearing or take the matter under advisement and communicate its decision to the owner at a later date.

7. **Authority of agents.** The management company, Association attorney, and other authorized agents of the Association are granted authority to send violation notices, levy fines according to the Standard Fine Schedule, and levy property damage assessments, all in accordance with this Enforcement Policy. Such parties may act without any explicit direction from the Board and without further vote or action of the Board. The enforcing party shall communicate with the Board and/or certain designated officers or agents on a routine basis with regard to enforcement actions. The foregoing notwithstanding, the Board reserves the right to make decisions about particular enforcement actions on a case-by-case basis at a properly noticed meeting if and when it deems appropriate.
8. **Force mows and other self-help enforcement action.** Notwithstanding other language herein, the management company, Association attorney, and other authorized agents of the Association are granted authority to carry out force mows or other self-help remedies on behalf of the Association, in accordance with any procedure described in the Declaration or other governing documents.
9. **Owners as Responsible Party.** If a family member, guest, tenant or invitee of an owner damages Association property or commits a violation of the Association's governing documents, the related enforcement action shall be taken against the owner, with all related damage assessments, fines, legal fees, and other charges levied against that owner and the related lot.
10. **Unpaid amounts.** Unless otherwise determined by the board, accounts with delinquencies of more than 90 days will be referred to Association legal counsel for collection. Upon such referral legal counsel is authorized to take whatever action necessary to collect the amounts due including without limitation demand letters, lien filing, and foreclosure action, and in the event of bankruptcy, appropriate filings and motions and monitoring to protect the Association's interest.

SECTION XVII. COLLECTION PROCEDURES

Summary of Collection Process

1. Assessments due within 30 days of due date (or invoice date if no due date stated)
2. Interest at 18% charged as of date of delinquency
3. Late fee assessed in an amount determined by the board
4. Courtesy notice sent via email or mail, giving 45 days to pay
5. Certified mail notice sent providing final warning/notice as required by statute
6. Account turned over to attorney for formal collection action

The Board may vary from this policy on a case by case basis, including shortening or lengthening time periods for payment or eliminating or providing additional courtesy notices, provided that all statutory notice requirements are met.

Collection policy:

1. **Purpose.** The Board of the Association is charged with overseeing the administration of the Association, including but not limited to the collection of assessments and other charges from the members. Late fees and collection costs may be charged for unpaid amounts. The Association has engaged the services of a professional association management company (including all agents of management company, "Manager") to perform day-to-day administrative tasks on behalf of the Association and may or has engaged a law firm ("Firm") to provide collection services through a licensed attorney. The timely collection of assessments is critical to ensuring that the Association can remain fully-funded and capable of fulfilling its duties to the members, and as such the Board desires that delinquent assessments be collected with a minimum of delay and expense.

2. **Scope.** This policy applies to all "Members" of the Association, said Members having a contractual obligation to pay assessments and other charges to the Association under the governing documents of the Association.

3. **The Policy.**

- a. **Introduction.** The Association's primary source of income is Member-paid Assessments, and without such income the Association cannot provide and maintain the facilities and services that are critical to the quality of life of Association residents and the protection of property values. The Association has experienced, and expects to continue to experience, situations in which Members are delinquent in their obligation to pay Assessments or Members are otherwise in violation of the governing documents. Therefore the Board has adopted, and by these presents does hereby adopt, the Assessment Collection and Enforcement Policy set forth below.

Per the Declaration the Association may collect, and has a lien for all amounts due, including assessments, fees, interests, costs, and attorney's fees. The Association further has a lien for all costs of self-help remedies (Declaration §7.04(E)).

- b. **Due Dates.** All Assessments and other amounts due are due within 30 days of the due date, or if none given, within 30 days of the date the related invoice, ledger, or other notice is sent to the Member.
- c. **NSF Fees.** Checks, ACH payments, or other type of payment returned for insufficient funds, dishonored automatic bank drafts, or other similar item will result in the assessment of a fee determined by the Board from time to time, in the minimum amount of \$30. Late fees shall also be assessed as appropriate.
4. **Delinquency/Collection.** Any Assessment or other amount due not paid within 30 days of its due date (or if none given, within 30 days of the date the related invoice, ledger, or other notice is sent to the Member) shall be deemed Delinquent. Delinquencies shall be handled as follows:
 - a. **Interest, Late Fees, Collection Costs.** Delinquencies may be charged interest on the sum owing at the rate of 18% per annum, until paid in full. In addition to interest a late fee in an amount as determined from time to time by the Board may be assessed. The owner is responsible for all costs of collection including attorneys' fees.
 - b. **Courtesy Notice of Delinquency.** Once an Assessment or other amount due becomes Delinquent, the Association, acting through its Board, managing agent, or some other Board designee, will email or mail a written notice to the related Member reminding him or her of the amount owed and requiring that it be paid immediately – no later than 45 days after the date of the letter.
 - c. **Final Letter After Courtesy Notice.** If payment in full or other mutually-satisfactory payment arrangements are not timely made in response to the courtesy notice, the Association, acting through its managing agent, shall send notice via certified mail, return receipt requested and otherwise complying with the requirements of Texas Property Code §209.0064 (including giving the owner a final 30 days to cure the delinquency prior to the account being turned over to an attorney.)
 - d. **Formal Collection Action.** After the expiration of the cure period provided by law (§209.0064, Texas Property Code), the account shall be turned over to the Association's attorney to initiate formal collection action. Unless otherwise determined by the Board, all attorney collection action is pre-authorized, including but not limited to sending a demand letter, filing of a Notice of Lien or similar instrument in the Official Public Records, and initiating and carrying out a foreclosure of the Association's lien against the Lot, all in accordance with state-law notice and procedural requirements.

The Board of Directors of the Association is charged with the duty of overseeing the administration of the Association, including but not limited to the collection of assessments and other charges from the members. The timely collection of assessments is critical to ensuring that the Association can remain fully funded and capable of fulfilling its duties to the members, and as such the Board desires that delinquent assessments be collected with a minimum of delay. This standardized collection policy is in the best interest of ensuring that collection procedures are applied consistently.

- e. Power of Sale. In conjunction with the Association's authority granted by the Declaration to foreclose its lien, the Association is vested with a power of sale⁵. The President of the Association may act as trustee for any such sale and is granted the authority to designate one or more agents and/or substitute trustees to exercise the Association's power of sale in conjunction with foreclosure of the Association's lien.
- f. Authority to Vary from Policy. In handling Delinquent amounts due, the Board of Directors retains the authority to vary from this Assessment Collection Policy as may be appropriate given the particular facts and circumstance involved, so long as the related action is in compliance with the Declaration and State law. Variances from policy may include adding additional courtesy letters, or omitting a courtesy letter, provided that at minimum all notice requirements of state law are met.
- g. Payment plans. Payment Plans shall be offered as described in the Association's Payment Plan Rule.
- h. Managing agent authorization. The Board Board hereby authorizes Manager and any successor management companies/management company agents retained by the Association with the authority to communicate with any Firm engaged by the Association with regard to collection activity, and the Board hereby authorizes, once the account is turned over to the Firm, for all successive collection steps to be carried out by the Firm on behalf of the Association should amounts remain unpaid, without further vote or action of the Board. This authority includes without limitation all statutorily-required notices, all title searches, lien filing, and other steps consistent with Firm's standard collection protocol⁶. This authority notwithstanding, Manager, and any successor management company, shall communicate with the Board and/or certain designated officers on a regular basis with regard to collection actions, and the Board reserves the right to establish policies with regard to collection efforts generally and to make decisions about particular collection actions on a case-by-case basis if and when it deems appropriate. The Board may terminate collection action on any owner account at any time.
- i. To the fullest extent allowed by law, any payment received by or on behalf of the from, or on behalf of, an Owner whose account reflects an unpaid balance may be applied to all non-assessment items first (attorney fees, violation fines, late charges, interest, other cost of collections, etc.) and then to special and annual assessments and last to regular assessments.

SECTION XVIII. COMMON AREA REPAIRS

- 1. For emergency repairs, manager or any board member may authorize. For emergency repairs, defined as those perceived to be necessary to prevent possible or further damage to persons or property, the association manager or any board member is preauthorized to approve and perform (cause to be

⁵ Per the Declaration, foreclosure can be in a like manner as a mortgage (Tex Prop Code §51.002) or judicially.

⁶ This includes without limitation account set up, 30-day demand letter, response to Fair Debt Collection Act dispute letter, lien filing, lien release, payment plan administration, title reports, notice of intent to foreclose (notice of default statutory lien), foreclosure petition filing, and foreclosure sale.

performed) such work. Board members, before carrying out an emergency repair, must attempt to contact the managing agent. Ideally the managing agent should coordinate all repairs, but in all emergency situations it is recognized that this may not always be possible.

2. Non-emergency repairs under \$500, manager or President may authorize. For non-emergency repairs estimated to be under \$500, the manager is preauthorized to approve and perform (or cause to be performed) such work. Additionally, the President is preauthorized to approve repairs of this type and direct the manager to cause them to be performed. A majority vote of the board may also approve such repairs.
3. Non-emergency repairs over \$500, President may authorize. For non-emergency repairs estimated to be over \$500, the President of the board is authorized to approve repairs of this type and direct the manager to cause them to be performed. A majority vote of the board may also approve such repairs.
4. General expenditures (not related to repair, e.g. food for Association functions) of under \$500 may be authorized by the Association President.
5. Pre-budgeted expenditures (of any dollar amount) may be authorized by the President.
6. New improvements, or unbudgeted expenditures not falling into categories (1)-(4) above, require board approval. New improvements (not repair, replacement or maintenance of an existing item, but construction of a new item not previously in place) and unbudgeted expenditures not falling into categories (1)-(4) above require majority vote of the board except when necessary to comply with applicable law, in which case the President may approve such improvements.

Failure to follow the procedure outlined herein shall not affect the association's obligation to pay a service provider providing services in good faith, or impose an obligation on the association to "un-do" any work not properly authorized. However any known violation of this policy must be documented in the minutes, and may be considered as grounds to remove an officer violating the policy from his office. If the board by majority vote of disinterested members finds that a director acted in bad faith in violation of this policy, this shall also be recorded in the minutes of the association, and the association shall consult with its legal counsel as to any appropriate legal remedies.

SECTION XIX. STANDBY ELECTRIC GENERATORS

1. **General.** Unless otherwise approved in writing by the Architectural Control Committee (the "ACC"), which approval may be denied, approved, or approved with conditions, an Owner may not install a standby electric generator except in compliance with this rule.
2. **Scope of Rule.** A standby electric generator is the only device that may be used to provide backup electric service to a residence. A "standby electric generator" means a device that converts mechanical energy to electric energy and is:
 - a. Powered by natural gas, liquefied petroleum gas, diesel fuel, or hydrogen;
 - b. Fully enclosed in an integral manufacturer-supplied sound attenuating enclosure;
 - c. Connected to the main electrical panel of a residence by a manual or automatic transfer switch;
 - d. Rated for a generating capacity of not less than seven (7) kilowatts; and
 - e. Permanently installed on a lot.
3. **Conflict with Other Provisions.** Per state law, this rule relating to standby electric generators controls over any contrary provision in the Association's governing documents.
4. **Prior Approval Required.** Prior to the installation of any standby electric generator or any part thereof, an owner must receive written approval of the ACC. Owners wishing to install standby electric

generators must submit plans and specifications to the ACC. The following requirements apply to plans and specifications:

- a. An owner must provide a reasonably accurate and scaled schematic of the lot showing the property boundaries of the lot and the location of the residence, other permanent structures, fencing, and any adjoining streets. The schematic must also contain a scaled drawing of the generator at the proposed location, and indicate the distance (in feet and inches) from the closest rear and side lot line.
- b. All other applicable information typically required by the Association for architectural approval (e.g., color samples, samples of screening materials, etc.) and necessary to ensure compliance with this rule must also be provided.

5. **Installation.** The following installation requirements apply to standby electric generators:

- a. Installation must be done in compliance with the manufacturer's specifications and applicable governmental health, safety, electrical, and building codes.
- b. All electrical, plumbing, and fuel line connections must be installed by a licensed contractor.
- c. All electrical connections must be installed in accordance with applicable governmental health, safety, electric, and building codes.
- d. All natural gas, diesel fuel, biodiesel fuel, or hydrogen fuel line connections must be installed in accordance with applicable governmental health, safety, electrical, and building codes.
- e. All liquefied petroleum gas fuel line connections must be installed in accordance with rules and standards promulgated and adopted by the Railroad Commission of Texas and other applicable governmental health, safety, electrical, and building codes.
- f. If a generator uses a fuel tank that is separate from the generator (i.e., the tank is not manufactured as an integral part of the generator system), the fuel tank must be installed in compliance with municipal zoning ordinances and governmental health, safety, electrical, and building codes.

6. **Maintenance.** The following maintenance requirements apply to standby electric generators:

- a. The generator and its electrical and fuel lines must be maintained in good condition at all times, including maintenance that is in compliance with the manufacturer's specifications and applicable governmental health, safety, electric, and building codes.
- b. Any deteriorated or unsafe component of a standby electric generator, including electrical and fuel line, must be promptly repaired, replaced, or removed.
- c. A generator may be tested for preventative maintenance only between 9:00AM and 6:00PM and not more frequently than suggested by the manufacturer.

7. **Location.** The following requirements apply to the location of a standby electric generator:

- a. Generators must be located in the rear yard area of the lot (behind the rear-most building line of the home). The generator may not be visible from a street, any common area, or the ground level of another lot unless it is screened in compliance with section 8.
- b. The ACC may, in its sole discretion, grant a variance to allow the generator to be located in an area other than as described in subsection (a) if the ACC deems that a variance is appropriate as a result of topographical or other issues and a plan for adequate screening of the generator is submitted and approved.
- c. The ACC will grant a variance allowing the generator to be installed in a location other than as required under subsection (a) if the owner can document in a format reasonably acceptable to the ACC that locating the generator in the rear yard will increase the installation cost by more than 10% or increase the cost of installing and connecting fuel lines by more than 20%. Even if such a variance is granted, the screening requirements outlined in section 8 must be met.
- d. Generators are expressly prohibited from being located on Association common areas or any other areas maintained by the Association.

- e. No portion of the generator may be installed within any applicable setback.
8. **Screening.** Owners must completely screen a standby electric generator from view if the generator is:
- a. Visible from the street faced by the dwelling;
 - b. Located in an unfenced side or rear yard of a residence and is visible either from an adjoining residence or from adjoining property owned or maintained by the Association; or
 - c. Located in a side or rear yard fenced by a wrought iron or residential aluminum fence and is visible through the fence either from an adjoining residence or from adjoining property owned or maintained by the Association.

Submitted plans must include as-installed dimensions and types of all landscaping to be used for screening and the color, materials, and dimensions of any proposed screening materials and/or structures.

9. **Allowable Use.** A standby electric generator may not be used to generate all or substantially all of the electrical power to a residence except when utility-generated electrical power is unavailable or intermittent due to causes other than nonpayment for utility service to the residence.

SECTION XX. POOL ENCLOSURE FENCING

1. "Pool enclosure" means a fence that:
 - a. surrounds an existing approved water feature including a swimming pool or spa;
 - b. consists of transparent mesh or clear panels set in metal frames;
 - c. is not more than 6' tall at any point; and
 - d. is designed not to be climbable.
2. Subject to this rule, owners may install a pool enclosure around a water feature located solely on property wholly owned by the owner.
3. All pool enclosures must be black in color absent express approval of alternate color(s) by the architectural reviewing body of the association. The architectural reviewing body may approve an alternate color but has no duty to do so.
4. All pool enclosures must consist of transparent mesh set in metal frames absent express approval of an alternate construction design by the architectural reviewing body. The architectural reviewing body of the association may approve an alternate construction design but has no duty to do so.
5. All pool enclosures must be maintained in a neat and attractive condition.
6. All plans for any pool enclosure must first be submitted to the architectural reviewing body for approval and approved by the architectural reviewing body prior to construction. All architectural requirements of the dedicatory instruments shall also apply, except to the extent expressly in conflict with this rule.

SECTION XXI. SECURITY MEASURES

1. **General.** The following rule outlines the restrictions applicable to security measures in order to permit them while also striving to maintain an aesthetically harmonious and peaceful neighbor for all neighbors to enjoy. "Security measure" means any improvement designed to prevent criminals' access to the home or criminal acts involving the home. In the event of a question as to whether a requested installation is a security measure, the answer will be determined by the board in its sole reasonable discretion.
2. **Cameras.** Owners may not place cameras in any area other than their own lot. For example, owners may not install cameras in any common area of the association. All cameras must be mounted on the

owner's home⁷, may not extend above the lowest portion of the roof line and may not extend from the façade of the home more than 2'. Cameras must be oriented so as to capture as little of a neighbor's property as reasonably possible⁸.

3. **Perimeter fencing.** Perimeter fencing when used in this Section means any ground-mounted fence or portion thereof that is installed on near a boundary line of the lot and that is installed in a contiguous manner around the entirety of the lot boundaries. Perimeter fencing does not include ornamental fencing. Ornamental fencing is defined as any fencing of which any portion thereof is less than 48" in height. A gate in a fence is part of the fence for all purposes considered. Except to the extent expressly provided in other dedicatory instruments, the association may prohibit any fencing other than perimeter fencing. All fencing including perimeter fencing must receive prior written approval from the association's architectural review body. With regard to fencing adjacent to a street, alley, or other through-way, the association may require a particular setback so as to maintain a more uniform aesthetic.

Unless otherwise approved in writing by the architectural reviewing body, all security fencing in the front yard (any portion of fencing in line with or in front of the front-most building line of the home) must consist of ornamental wrought iron or metal fencing, all portions of such fencing must be black in color, and must have the following specifications: pickets 1.75" square; rails 1.5" square; standard posts 2.5" square; picket spacing of at least 3" and not more than 4"; post spacing at least 8' on center; height of between 48" and 60"; no ornamentation (for example no picket tops or rail tops); no slats, planks, or other solid material.

4. **Parameters; Plans and specifications.** Prior to installation of any security measure, owners must submit plans and specifications including dimensions, colors, materials, and proposed location on the owner's lot, scaled in relation to all boundary lines and other improvements on the lot. Plans must be submitted to the association's architectural review body, and owners must receive prior written approval prior to installation of any improvements. All proposed installations must be of a type, including materials, color, design, and location, approved by the architectural reviewing body. The architectural reviewing body may require or prohibit the use of specific materials, colors, and designs and may require a specific location(s) for the security measure. If the dedicatory instruments do not designate an architectural reviewing body (such as an architectural control committee) the approval must be received from the board.)

SECTION XXII. BID PROTOCOL FOR PROJECTS EXCEEDING \$50,000

1. In the event that the association proposes to contract for services that contemplate more than \$50,000 in expenditures in a single contract scope of work⁹, the association will solicit bids or proposals in accordance with the provisions of this Section. The board or manager acting on behalf of the board shall use good faith effort to obtain at least three bids¹⁰ for the project based on a consistent scope of work presented to the would-be bidders. The board will review any bids and make a final decision on to whom to award the contract. Among the factors the board may consider in its discretion when making its decision are: experience, reputation, pricing, past dealings, availability, warranties offered, ongoing warranties, and any other factor that the board in its reasonable discretion considers relevant. The board and manager will be deemed to have used good faith effort to obtain three bids if an agent of the association has submitted a bid request to at least three vendors and given each vendor at least seven days to submit a bid or proposal. Notwithstanding, multiple bids need not be solicited if after good faith efforts multiple service providers cannot be found, or using a different service provider would void one or more warranties.

⁷ For example cameras may not be mounted on a pole in the yard.

⁸ For example Ring-type doorbell cameras often incidentally capture portions of properties across the street. This is not disallowed.

⁹ This protocol is n/a for example to a contract payable monthly which over a number of months or years may eventually result in \$50,000 or more in expenditures.

¹⁰ But recognizing that it is not feasible to obtain bids from parties who choose not to bid, is not required to obtain three bids and is only required to make good faith effort to attempt to do so.

SECTION XXIII. LEASING INFORMATION

1. To the extent leasing is authorized under other dedicatory instruments, in addition to any other information required by any dedicatory instrument to be provided regarding leasing, the following information must be provided to the Association within seven days of the owner entering into any lease for the owner's property:

*contact information including name, mailing address, phone number and email address for each person who will reside at the property (all tenants and occupants); and
 *the commencement date and term of the lease

SECTION XXIV. SIGNS

1. Except as expressly provided in this Section, no signs may be displayed on any Lot so as to be visible from another Lot or the common areas.
2. The following signs are permitted:
 - a. One "for sale," "for rent," or other realtor sign per Lot, provided that the sign can be no larger than 9 square feet;
 - b. One "school support" sign per minor child residing on the Lot, provided that the sign can be no larger than 9 square feet;
 - c. One alarm company sign, provided that the sign can be no larger than one square foot;
 - d. Political advocacy signs supporting a particular candidate or ballot item. Political signs can be no greater than four feet by six feet in size (and no greater than 24 square feet total) and must be ground-mounted. An owner may only display political signs on property owned by him (for example, signs are forbidden in the common area, outside of a fence/lot boundary line, etc.). A maximum of one sign per each candidate or ballot item may be displayed on any lot. Political signs may only be displayed during the following time period: 90 days before the date of the election to which the sign relates, and 10 days after the election date. Only signs for candidates and ballot items for a particular election are allowed.
3. The following signs are prohibited:
 - Signs containing roofing material, siding, paving materials, natural or artificial flowers or other landscaping items
 - Signs containing one or more balloons
 - Signs with lighting
 - Signs with any building, landscaping, or non-standard decorative components
 - Signs that are attached in any way to landscaping/plant material, a traffic control device, a light, a trailer, a vehicle, or any other existing structure or object such as a fence (signs must be ground-mounted only)
 - Signs that involve painting of architectural surfaces
 - Signs that threaten the public health or safety (for example, signs that block a driver's view)
 - Signs that contain language, graphics, or any display that would be offensive to the ordinary person
 - Signs accompanied by music or other sounds, or by streamers, or that are otherwise distracting to motorists
4. The Association may remove and discard any sign displayed in violation of this rule.

SECTION XXV. CODE OF CONDUCT

For the benefit of all residents, and in the interest of allowing residents to both express their opinions and peaceably enjoy their property and common areas, the Board of Directors has adopted this Code of Conduct as an Association rule.

This Code of Conduct provides that Association officers and directors, owners, residents, and guests must conduct themselves in a civil, non-intimidating, and non-threatening manner when dealing with the Association's agents (including without limitation its officers, directors, committee members, manager and other management company agents, employees, contractors, independent contractor service providers, and other agents), as well as other owners, residents, and guests. No person has the right to abuse, disturb, or unreasonably annoy another, nor does any person have a duty to tolerate abuse or unreasonable annoyance or disturbance.

1. Prohibited conduct. The following conduct is expressly prohibited between or among any of the above-described parties:
 - a. photographing, recording, or video-taping residents, guests, or agents of the Association without their express consent¹¹;
 - b. verbal abuse, including yelling, name-calling, or similar;
 - c. insults, derogatory name-calling, or demeaning comments;
 - d. cursing or profanity;
 - e. use of slurs of a nature that is racial, ethnic, religious, sexual orientation-related, or gender-related;
 - f. behavior that a person of ordinary sensibilities would find intimidating, aggressive or threatening;
 - g. hostile or unwanted touching, physical contact, or threats of physical contact;
 - h. sexual harassment or lewd behavior;
 - i. sexually suggestive language or other language that is likely to be offensive to a person of ordinary sensibilities;
 - j. posting any item, including correspondence, on the doors of any other resident or anywhere in the community without express written permission from the Board, and placing any item in the area of the door(s) of any other resident or anywhere else in the community other than in a resident's own property;
 - k. correspondence, whether oral, written, or electronic, that is deemed in the Board's or manager's sole discretion to be harassing or intimidating (the Board and/or manager may without limitation consider the tone, time, and frequency of correspondence, and whether previous reply has been given to similar correspondence, in determining whether correspondence is harassing or intimidating);
 - l. publicly posting in any forum (by way of example and not limitation: via internet, text, mail, paper flyer) any comment, statement or remark about an Association employee, officer, director or representative that is or may be reasonably interpreted as defamatory, threatening, harassing, or intimidating;
 - m. calling, texting, or otherwise corresponding with another resident or a director, manager, or other agent of the Association after being instructed not to do so;
 - n. asking Association or management personnel to perform personal errands;
 - o. creating a fire hazard of any sort anywhere in the community;
 - p. making loud noises or other engaging in other activity that unreasonably interferes with a resident's peaceful enjoyment of the community or is a nuisance;
 - q. entering another owner's Unit or that Unit's Limited Common Elements without the Unit owner's permission;
 - r. depositing trash, clutter, debris, or other objects on another resident's property, on the Common Elements, or anywhere other than designated receptacles;
 - s. placing any items on any of the General or Limited Common Elements, except as expressly authorized by the Declaration, the Rules, or the Board of Directors;
 - t. obstructing free passage along sidewalks and doorways, either in person or by use of an object;
 - u. directly addressing contractors or persons who are performing work around the community in a way that the person finds to be intrusive, interfering, harassing, or threatening. Without

¹¹ This is not applicable to monitoring equipment installed or maintained by the Association in or around common areas or to other monitoring equipment approved with written consent of the Board.

limitation, owners may not direct or attempt to direct association's contractors actions in any way. Any questions or concerns regarding the work of association service providers must be directed to management unless an owner is expressly directed to communication in an alternate manner;

- v. interrupting utility service to any part of the community without prior written approval of the board or management;
 - w. causing damage to any common elements, other units, or the personal property of others that is located on the community property;
 - x. displaying in any manner weapons such as knives, guns, brass knuckles, or other similar items, regardless of whether the display is intended as threatening. All such items may be transported to the owners' unit to and from the owner's car as reasonably necessary but at all times in a case or other enclosed carrier.
 - y. reporting an alleged violation of a building, health or safety code when no such violation exists or is substantiated by the code enforcement body.
2. **Requests to leave.** Any resident, guest, director or officer who is requested by the Board or managing agent to leave the manager's office or an Association facility or meeting shall do so immediately.
 3. **Communication with the Association Manager or Board.** The Board or manager may require, in their sole discretion and upon notice to a resident, that all non-emergency communication (emergency being immediate threat to persons or property) from the resident or owner be in writing and/or in a particular form (such as, without limitation, mail or email).

Further, the Association may, upon notice to a resident or owner, direct the resident or owner to discontinue all non-emergency communications, and may decline to reply to communications except as required by law. The Board may require all communications to be through the management representative or other Association agent only (may prohibit direct communication with directors or officers). For any situation involving immediate threat of physical harm to persons, 911 should be contacted.

When there are multiple owners of a property, the Board may select one of the owners as the contact person for all communications. Following notice to the owners that one has been chosen as the contact person, that contact person is the only one that will be deemed authorized to communicate with the Association.

4. **Communication from tenants.** All communications related to Association matters should come from owners rather than their tenants. The Board or manager, in their sole discretion, may decline to reply to communications from tenants.
5. **Association employees/contractors.** Residents may not instruct, direct, or supervise the Association's or manager's employees, agents, or contractors unless otherwise directed to do so in writing by the Board. Residents and guests may not harass or interfere with the performance of any duties being performed by the Association's or manager's employees, agents, or contractors.
6. **Owner Responsibility.** Owners are responsible, and can be fined, for all violations committed by residents of their unit, their guests and invitees, as well as their tenant's and their tenant's guests and invitees.
7. **Fines/enforcement action.** Notwithstanding any other language to the contrary in other Rules, a fine in the amount of \$100/violation shall apply to each violation of this Code of Conduct, unless the Board of Directors determines otherwise¹². If an Owner has been cited for a violation of this Code of Conduct in the preceding six months, the fine shall increase to \$150/violation. In

¹² The board may in its discretion pass a resolution setting fines for any specific violation case-by-case, at a higher or lower amount, as it believes appropriate.

addition, the Association may invoke any other remedy allowed by its Covenant Enforcement and Fining Policy.

SECTION XXVI. POOL RULES

Pool Address: 12521 Scofield Farms Drive, Austin, TX. 78727

Emergencies should be reported immediately to 911. For non-emergency reporting, please submit reports to association management. Contact information for association management can be found on www.scofieldfarms.org.

In order to help keep our community pool safe and clean, the following pool rules have been approved by the Scofield Residential Owners Association (ROA).

1. The use of the community pool is strictly for Scofield Farms residents and their guests.
 - SF residents must be in good standing with ROA dues
 - SF residents are defined as residents of SF proper, The Park at SF and SF Withers Way area. No exceptions.
 - Guests must be accompanied by the SF resident. No exceptions.
 - SF residents may only have up to five guests per card.
2. **You must use your own pool keycard to enter the pool area.** Please remember to bring it with you.
 - Residents are prohibited from allowing anyone without a pool key card into the pool area.
 - Anyone caught allowing unauthorized entry will lose their own pool privileges.
3. The pool hours are posted on the pool gate for your convenience. Posted pool hours supersede the hours posted in this rule. Entry into the pool area outside posted pool hours is considered trespassing and could lead to an arrest and/or conviction applicable by law, in addition to loss of pool privileges. If Austin Police issues a trespassing warning, pool privileges will automatically be suspended for a period of one year.

Pool Hours:

Monday	Tuesday	Wednesday	Thursday	Friday	Saturday	Sunday
6 AM – 10 AM (lap swimming only)	6 AM	6 AM	6 AM	6 AM	6 AM	6 AM
5 PM - 10 PM	10 PM	10 PM	10 PM	10 PM	10 PM	10 PM

** Closed for regular maintenance on Mondays from 10 AM to 5 PM (open 6 AM to 10 AM Mondays for lap swimming)*

***Please note that the pool may close on unscheduled additional times in the event of emergency maintenance needs*

The swimming pool is closed from November through March. The Scofield Farms HOA Board determines annual pool opening dates.

UNDER NO CIRCUMSTANCES WILL ALCOHOL, TOBACCO PRODUCTS, FIREARMS OR DRUGS BE PERMITTED IN THE AMENITY CENTER OR SURROUNDING AREAS.

ANYONE SEEN ENGAGING IN THE USE WILL BE SUBJECT TO LOSS OF PRIVILEGES FOR A PERIOD OF TIME TO BE DETERMINED BY THE ASSOCIATION BOARD, AND OTHER LEGAL ACTIONS MAY BE TAKEN IN CONJUNCTION WITH THE AUSTIN POLICE DEPARTMENT AND THE COUNTY CONSTABLE.

GENERAL REQUIREMENTS AND CONDUCT: Any individual(s) who are reported to be/or found to be in violation of any of the following pool rules will be reported to the Scofield Residential Owners Association Board and possibly the Austin Police Department and/or County Constable (as applicable). The nature of the situation will be considered and action(s) toward resolution will be at the Board's discretion.

- Use of any facility and equipment provided in the amenity center is at your discretion. Please use caution. **Swim at your own risk.**
- When lifeguards are on duty, they are the authority at all times. Pool users must obey lifeguards' direction at all times. Lifeguards have the authority to require any pool user(s) and their guest(s) to leave the pool for rule violation(s).
- Swim safely and treat others as you would like to be treated. Do not throw items when others are nearby. Residents are responsible for the behavior of all members of their household and their guests. Please respect teachers and students involved in approved swim lessons.
- If a fecal accident occurs, the responsible care giver is required to report the contamination to the lifeguard immediately, all swimmers must exit the pool immediately, and the pool will be closed for a minimum of two (2) hours from the time the pool has been chemically treated. The pool will be cleaned, disinfected and tested, and proven to be free from contamination before the pool will be reopened. If your child is found to be responsible for a closure due to fecal matter, all costs to clean and reopen the pool may be assigned to your family if (and only if) the incident is not promptly reported. Lifeguards, when on duty, will supervise the evacuation of the pool and report the incident to management. When lifeguards are not on duty, incidents should be reported to association management immediately.
- Persons with open sores, wounds and bandages or communicable diseases should refrain from swimming in the pool.
- Any items lost will be your responsibility. If the loss or find is of great value, please contact association management. If the association elects to maintain a lost and found, lost and found items may be donated to a local charity at any time.
- In the event of inclement weather, swimmers must clear the pool during the storm and for at least thirty (30) minutes after lightning and/or thunder have ceased. Patrons are welcome to stay in the pool area during this time, but are cautioned to stay a safe distance from the water.
- For lost key replacement information please see FAQs doc on the pool page of the Scofield Farms website at www.scofieldfarms.org

Category A – Rules:

- 1a. Do not allow others into pool area. Each family must use their own pool card.
- 2a. No sitting in or jumping off the lifeguard chairs. Only lifeguards are allowed on the lifeguard stand.
- 3a. The gates are to remain locked at all times (except during key card entry). The pool can only be accessed with a pool key card. Under no circumstances may the gates be propped open. The fence and gate that surround the pool area are for resident protection.
- 4a. Conduct by any person deemed to be dangerous, unreasonable, or offensive (including "horseplay") is not allowed and should be reported to the lifeguard and to association management. Pool users must abide by lifeguard warnings and other direction, including any

direction to leave the pool. Failure to abide by lifeguard direction may result in loss of pool privileges in addition to other enforcement action.

5a. All pool parties must be registered with association management, there is a nominal fee required and a dedicated lifeguard may be required depending on the size of the party.

Category B – Rules:

1b. When a lifeguard is not on duty, children under age 14 may not be in the pool without supervision by a person aged 18 or older that is a Scofield Residential Owners Association resident.

2b. Proper swim attire is required.

3b. The baby pool is reserved for children ages five (5) and under. Adult supervision is required at all times for children in the baby pool.

4b. Running, hopping, skipping or speed walking within the pool area is prohibited.

5b. Under no circumstances shall pets, bicycles, skateboards, scooters or motorized cycles be permitted within the pool fences. Roller-skates and/or rollerblades may be carried into the pool area and stored with personal belongings but may not be worn within the pool fences.

6b. Diving from the side of the pool is not permitted.

7b. No glass containers of any type are allowed in the pool area.

8b. No smoking allowed anywhere within the pool amenity center.

9b. Food should be consumed either in the covered area away from the pool or in other sitting areas at least six feet away from the pool.

10b. All trash generated by swimmers must be placed in garbage containers for proper disposal.

11b. Swimmers must vacate the swim lane when it is in use by a lap swimmer.

12b. All non-lap swimmers may be required to vacate the pool and wading pool for 10 minutes each hour at the lifeguard's request for lifeguard breaks. During that 10-minute interval, lap swimmers may swim and lifeguards will tend to regular maintenance requirements. **Pool users are encouraged to use the restroom during this break.**

13b. No person shall distract a lifeguard who is on the lifeguard stand **except in cases of an emergency.**

14b. All air-inflated equipment may be used at the discretion of the lifeguards. Exceptions are arm floaties and toddler carriers/life preservers.

Any individual who violates the rules outlined in Category A will automatically receive loss of pool privileges for 30 days. Repeat violations of Category A rules will result in loss of pool privileges for the rest of the season or longer at the HOA Board's discretion. Repeat violations of Category B rules will result in documentation and possible loss of pool privileges at the discretion of the board.